

FEDERAL MARITIME COMMISSION

Office of the Administrative Law Judges

JOSH ANYAOSAH, *Claimant*

v.

NIDSAN SHIPPING, INC., *Respondent*.

DOCKET NO. 2031(I)

Served: January 29, 2026

ORDER OF: Richard AMBROW, *Small Claims Officer*.

ORDER DENYING CLAIMANT’S PETITION FOR RECONSIDERATION AND MOTION TO VACATE INITIAL DECISION¹

On May 14, 2025, Claimant Josh Anyaosah (“Claimant”) submitted a Claim, along with accompanying exhibits, alleging that Respondent Nidsan Shipping, Inc. (“Nidsan” or “Respondent”), violated 46 U.S.C. §§ 41102(c), as well as 46 C.F.R. §§ 30701, 30704, and 40502. Claimant also alleges that Respondent breached its contractual obligations and acted negligently. In brief, Claimant alleges that Respondent, an ocean transportation intermediary, transported two containers to the incorrect destinations. (Initial Decision, at 1).

On January 20, 2025, I issued the Initial Decision in this matter. The Initial Decision denied and dismissed the Claim. In particular, the Initial Decision:

- Denied the Claim to the extent it alleged a violation of 46 U.S.C. § 41102(c) because Claimant did not carry his burden of showing that the Respondent performed allegedly unreasonable acts on a normal, customary and continuous basis. (*See* Initial Decision, at 5-7; *see also* 46 C.F.R. § 545.4).
- Denied the Claim to the extent it alleged violations of the Carriage of Goods by Sea Act, as well as common law claims of breach of contract and negligence, due to lack of jurisdiction. (*See* Initial Decision, at 7).

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service. The filing of a petition for reconsideration shall act as a stay of the review period described in Commission Rule 304(g). (46 C.F.R. § 502.304(h)). Upon issuance of a decision or order on reconsideration by the Small Claims Officer, the review period prescribed in Commission Rule 304(g) will recommence. (*Id.*).

- Found that the Claim does not contain a viable claim under § 41104(a)(4) due to a lack of a “practice.” (*See* Initial Decision, at 7-8).

On January 26, 2026, Claimant filed Claimant’s Petition for Reconsideration and Motion to Vacate Initial Decision (“Petition for Reconsideration” or “PFR”). In short, Claimant advances two arguments. First, Claimant argues that the Initial Decision erroneously imposed a heightened evidentiary requirement. (PFR, at 1-2). Second, Respondent argues that the Initial Decision impermissibly adjudicated claims sounding in negligence and breach of contract. (PFR, at 1-3).

Commission Rule 304, which is found within the procedures for adjudicating informal claims, provides that:

Within thirty (30) days after service of a final decision by a Small Claims Officer, any party may file a petition for reconsideration. Such petition shall be directed to the Small Claims Officer and shall act as a stay of the review period prescribed in paragraph (g) of this section. A petition will be subject to summary rejection unless it:

- (1) Specifies that there has been a change in material fact or in applicable law, which change has occurred after issuance of the decision or order;
- (2) identifies a substantive error in material fact contained in the decision or order;
- (3) addresses a material matter in the Small Claims Officer's decision upon which the petitioner has not previously had the opportunity to comment.

Petitions which merely elaborate upon or repeat arguments made prior to the decision or order will not be received. Upon issuance of a decision or order on reconsideration by the Small Claims Officer, the review period prescribed in paragraph (g) of this section will recommence.

(46 C.F.R. 502.304). I will treat Claimant’s filing as a Petition for Reconsideration under Commission Rule 304.

Reviewing the standards for a petition for reconsideration under Commission Rule 304, I find that Claimant’s PFR may be summarily rejected. First, Claimant does not indicate any change in material fact or applicable law after the Initial Decision was issued. Second, while Claimant argues that the Initial Decision misapplied the law, Claimant does not identify a substantive error in material fact contained in the decision. Third, Claimant already had the opportunity to address the key issue raised in the Initial Decision – namely the elements of § 41102(c). In fact, as pointed out in the Initial Decision, the Small Claims Officer (“SCO”) to whom this matter was initial assigned, SCO Theresa Dike, sent the parties a Request for Additional Documents and Information (“RFI”) to the parties on August 7, 2025, in which she expressly pointed out that § 41102(c) requires a showing that the allegedly unreasonable practice occur on a normal, customary or continuous basis. (Initial Decision, at 3 (citing RFI, at 1)). Accordingly, the PFR is **DENIED**.

Even if I were to address the merits of the PFR, the PFR would be denied. As noted, the PFR asserts that the Initial Decision imposed a heightened evidentiary requirement on Claimant by requiring him to show that Respondent engaged in a “practice.” (PFR, at 1-2) (“Requiring proof of habitual or industry-wide misconduct improperly converts an individual Shipping Act complaint into a generalized enforcement action and is inconsistent with both the Act and Commission precedent.”). Instead, Claimant argues that, in this case, Respondent delivered Claimant’s containers to the wrong destinations, which should be sufficient to state a claim. (PFR, at 2) (“Here, the record contains evidence that Respondent’s acts and omissions resulted in the **misdelivery of Claimant’s container**, causing concrete and particularized injury.”) (emphasis in original).

This argument is not persuasive. In a rulemaking from 2018, the Commission specifically clarified that § 41102(c) is not a remedy for one-time unreasonable acts. (46 C.F.R. § 545.4; *Interpretive Rule, Shipping Act of 1984*, 83 FED. REG. 64478, 64479; *see also Crocus Investments, LLC v. Marine Trans. Logistics, Inc.*, Dkt. No. 15-04, 2021 WL 3732849, at *8 (FMC Aug. 18, 2021)). Instead, the claimant must show that the respondent is engaged in unjust and unreasonable “regulations or practices.” (46 U.S.C. § 41102(c)). Although Claimant argues that the Initial Decision imposes a heightened evidentiary standard unfairly, the Initial Decision simply applied the plain language of the statute (requiring unjust and unreasonable “regulations or practices”), and the Commission’s interpretation of the statute (also requiring a showing of a practice), to the facts in the record (which does not show a practice). (*See* Initial Decision, at 5-7).

Claimant also argues that the Initial Decision resolved issues sounding in negligence and breach of contract even though the Commission does not have jurisdiction over such claims. (PFR, at 1-3) (“The Shipping Act does not confer jurisdiction upon the Commission to determine liability for cargo misdelivery as a matter of negligence or breach of contract. By resolving such issues, the Initial Decision exceeds the limits of the Commission’s authority and is **void as a matter of law**.”) (emphasis in original). The Initial Decision, however, did not resolve Claimant’s common law claims on the merits. To the contrary, the Initial Decision expressly stated that “. . . the Commission does not have jurisdiction over common law claims.” (Initial Decision at 7).

For the reasons discussed above, I **HEREBY ORDER** that Claimant’s Petition for Reconsideration is **DENIED**.

SO ORDERED

Richard C. Ambrow Jr -S

Richard Ambrow
Small Claims Officer